



U.S. Department
of Transportation

Research and
Special Programs
Administration

OCT 2 1996

400 Seventh Street S.W.
Washington, D.C. 20590

DOT-E 11636
FIRST REVISION

EXPIRATION DATE: September 1, 1998

(FOR RENEWAL, SEE 49 CFR SECTION 107.105)

1. GRANTEE: National Independent Parts Cleaners Association
(NIPCA)
Canby, Oregon

(See Appendix A to this document for a list of NIPCA Members)

2. PURPOSE AND LIMITATION: This exemption authorizes the transportation in commerce of certain non-DOT specification steel drums containing waste solvent to be shipped without leakproofness testing. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Part 173.28(b)(2), 173.203 in that non-DOT specification packagings are authorized.
5. BASIS: This exemption is based on the application of NIPCA dated September 24, 1996, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Waste combustible liquid, n.o.s.	Combust- ible liquid	NA1993	III

OCT 2 1996

Page 2

Continuation of DOT-E 11636 1st Rev.

7. PACKAGING AND SAFETY CONTROL MEASURES:

- a. PACKAGING - Straight-sided or tapered non-DOT specification metal drums similar to UN1A2 drums. Two package sizes: 16 and 30 gallons.
- b. TESTING - In accordance with 178 Subpart M, except that drop test liquid level may be only 20 gallons for the 30 gallon drum, and 10 gallons for the 16 gallon drum. No stack test performed. Hydrostatic test performed to 103 kPa (15 psi). Must be capable of withstanding, without rupture or leakage the vibration test procedure specified in 49 CFR Section 178.608.
- c. OPERATIONAL CONTROLS - Drums may be reused for the transportation of waste combustible liquids, n.o.s. without being subjected to the leakproofness test of 49 CFR Section 173.28 (b)(2), subject to the following:
 - (i) Filling limits: 30 gallon drum may not be filled to a level greater than 20 gallons. Sixteen gallon drum may not be filled to level greater than 10 gallons.
 - (ii) Stacking: No stacking of the drums is allowed.
 - (iii) Inspection/rejection criteria: Each drum shall be inspected for leakage before refilling and shipment. Any sign of leakage requires that the drum be permanently taken out of service. Further, inspection of general drum condition shall be in accordance with NIPCA 'Recommended Container Management Guidelines' submitted in the application, and each drum not in compliance with this guideline must be removed from service.
 - (iv) Drum must be transported only aboard NIPCA members vehicles and each vehicle used in the transport of these drums must have a means of containment sufficient to contain 30 gallons of solvent. Further drivers of such vehicles must be trained and able to implement the means of containment.

OCT 2 1996

Continuation of DOT-E 11636 1st Rev.

Page 3

8. SPECIAL PROVISIONS:

a. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

b. MARKING - Each drum must be marked "DOT-E 11636" on a contrasting background. Additionally, each drum must be marked "DO NOT STACK".

c. A copy of this exemption must be maintained and made available for examination at each location where refilling of drums which have not been leakproofness tested takes place.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq.

o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable.

OCT 2 1996

Continuation of DOT-E 11636 1st Rev.

Page 4

(49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:

OCT 2 1996

Alan I. Roberts
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FHWA

APPENDIX A

(SEE APPENDIX A TO THIS DOCUMENT FOR A LIST OF NIPCA MEMBERS)

NIPCA

National Independent Parts Cleaners Association

PO Box 426
Canby, Oregon 97013

11636

Laidlaw Environmental Services
Attn: Larry Vinegar
7783 Progress Way
Delta, B.C. V4G1E7
Canada

Larry Freepons, Inc.
Attn: Larry Freepons
93545 Dorsey Lane
Junction City, OR 97448

Northland Products Company
Attn: Bob Peterson
P.O. Box 418
Waterloo, IA 50704

Northwestern Parts Washer, Inc.
Attn: David Lankford
1261 Wilson, Suite 39
Pocatello, ID 83201

Pure Solve, Inc.
Attn: Mark Hoesten
P.O. Box 655450
Irving, TX 75265

Solvent Systems International
Attn: Stephen Rundell
339 W. River Road
Elgin, IL 60123

Solvent Systems, Inc.
Attn: Dave Collins
P.O. Box 30657
Mesa, AZ 85275-0657

Technisolv, Inc.
Attn: Joe Janecky
4940 Jackson Street
Denver, CO 80216

Unitek Solvent Services, Inc.
2889 Mokumoa St.
Honolulu, Hawaii 96819

Vesco Oil Corp.
Attn: Dennis Hagen/Eric Weiss
P.O. Box 525
Southfield, MI 48037-0525

Wesco Parts Cleaners
Attn: Bob Westcott
P.O. Box 426
Canby, OR 97013

WRR Environmental Services Co Inc.
Attn: Brian Schneider
5200 State Rd. 93
Eau Claire, WI 54701-9807

NIPCA

National Independent Parts Cleaners Association

PO Box 426
Canby, Oregon 97013

11636-W

C.R. Warner Parts Washer Serv.
Attn: Robert J. Krawiecki
Yankee Point Terminal
61st + W. Passyunk Ave.
Philadelphia, PA 19153

Clean Solutions
Attn: Donna Huether
141 Industrial Ave.
Williston, VT. 05495

COMO Lube & Supplies, Inc.
Attn: Laura Lott
2728 West Superior Street
Duluth, MN 55806

Crystal Clean
Attn: Randy Reynolds
17 West Morris
Indianapolis, IN 46231

Diamond Oil Distributors
Attn: Mark Peterson
4875 Star S.E.
Grand Rapids, MI 49546

Enviro Kleen, Ohio
Attn: Brian Johnson
P.O. Box 2035
Newark, OH 43056

JH & B Enterprises, Inc.
Attn: John Harrelson
3335 Aztec
P.O. Box 445
St. George, UT 84770

Kwik-Kleen Inc., Montclair
Attn: Jerry Croswell
Box 2096
Montclair, CA 91763

Capital Parts Washers Inc.
Attn: Elizabeth Lenhart
570 Industrial Drive
Lewisberry, PA 17339

CleanCare Corporation
Attn: Russ Sulman
2244 Port Of Tacoma Road
P.O. Box 940
Tacoma, WA 98401

Connecticut Waste Oil
Attn: Joe Peruti/Joe Calvi
P.O. Box 179
Meriden, CT 06450

Cycle Solve Corp.
Attn: Gerald Gannon
167 Mill St.
Cranston, R. I. 02906

Eco-Clean Incorporated
Attn: Tim Settles
PO Box 20336
Springfield, IL 62708

Intermountain Parts Cleaners
Attn: Steve Spencer
550 West 200 South
P.O. Box 545
American Fork, UT 84003

Kelly Distributing Co. Inc.
Attn: Bob Prater/Dick Wolfe
P.O. Box 707
Jackson, MI 49204

Kwik Kleen - Ohio
Attn: Don Kannenberg
2301 Denison Avenue
Cleveland, OH 44109